

VENDOR SERVICES AGREEMENT

This Vendor Services Agreement ("Agreement") is entered into as of March 1, 2026, by and between Riverbend State University ("University"), a public institution of higher education, and NimbusGrid Analytics, Inc. ("Vendor"), a Delaware corporation, collectively referred to as the "Parties."

1. Scope of Services

Vendor shall provide cloud-based enrollment analytics and predictive modeling services (the "Services") to assist the University's Office of Admissions in forecasting applicant yield and identifying at-risk students, as further described in Exhibit A. Services shall include software access, data ingestion, dashboard reporting, and quarterly model recalibration.

2. Term

This Agreement shall commence on the Effective Date and continue for an initial term of twelve (12) months. Thereafter, this Agreement shall automatically renew for successive one (1) year terms unless either Party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term.

3. Fees and Payment

University shall pay Vendor an annual subscription fee of \$54,000, payable in full within thirty (30) days of receipt of invoice. Late payments shall accrue interest at 1.5% per month. Vendor reserves the right to increase fees upon renewal with sixty (60) days' written notice.

4. Vendor Obligations

Vendor shall use commercially reasonable efforts to maintain 99% uptime for the Services, excluding scheduled maintenance windows. Vendor shall provide standard email support during business hours (9am-5pm ET, Monday-Friday) with a target response time of two (2) business days.

5. Intellectual Property

Vendor retains all right, title, and interest in and to the underlying software platform, algorithms, and pre-existing intellectual property. University retains ownership of all data it provides to Vendor ("University Data"). Vendor may use aggregated, de-identified University Data to improve its products and services generally.

6. Limitation of Liability

EXCEPT FOR BREACHES OF CONFIDENTIALITY, VENDOR'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY UNIVERSITY IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM. IN NO EVENT SHALL VENDOR BE LIABLE FOR ANY INDIRECT, INCIDENTAL, OR CONSEQUENTIAL DAMAGES.

7. Indemnification

University shall indemnify, defend, and hold harmless Vendor from any claims, damages, or expenses arising from University's misuse of the Services or violation of applicable law. Vendor's indemnification obligations to University are limited to claims of third-party intellectual property infringement directly caused by the unmodified Services.

8. Confidentiality

Each Party agrees to protect the other Party's Confidential Information using the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care. This Section shall survive termination of this Agreement for a period of three (3) years.

9. Termination

Either Party may terminate this Agreement for material breach if such breach remains uncured thirty (30) days after written notice. University may not terminate this Agreement for convenience during the initial twelve (12) month term.

10. Governing Law

This Agreement shall be governed by the laws of the State of Delaware, without regard to its conflict of laws principles. Any disputes shall be resolved exclusively in the state or federal courts located in Wilmington, Delaware.

11. Entire Agreement

This Agreement, including its Exhibits, constitutes the entire agreement between the Parties and supersedes all prior negotiations, representations, or agreements, whether written or oral, relating to its subject matter.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

Riverbend State University

NimbusGrid Analytics, Inc.